

26STCV07157 26STCV07157

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Case Number: 26STCV07157 Hearing Date: August 6, 2026 Dept: 511

Tentative Ruling

Judge Upinder S.

Kalra, Department 511

HEARING DATE: August

6, 2026

CASE NAME: Jonathan

Russell Towns, et al. v. Worldrace Productions, Inc., et al.

CASE NO.: 26STCV07157

MOTION

TO COMPEL ARBITRATION

MOVING PARTY: Defendants

Worldrace Productions, Inc., Paramount Skydance Corporation, and CBS
Broadcasting Inc.

RESPONDING PARTY(S): Plaintiffs Jonathan Russell

Towns and Ana Rivera Towns

REQUESTED RELIEF:

1. An

order compelling Plaintiffs to submit their claims to arbitration and to stay
this action pending arbitration.

TENTATIVE RULING:

1. Motion

to compel arbitration is GRANTED.

STATEMENT OF MATERIAL FACTS AND/OR PROCEEDINGS:

On March 4, 2026, Plaintiffs Jonathan Russell Towns and Ana Rivera Towns (Plaintiffs) filed a complaint against Defendants Worldrace Productions, Inc., Paramount Global, CBS Broadcasting Inc., ABC Signature Studios, Inc., and Jerry Bruckheimer Films, Inc. (Defendants) with causes of action for: (1) defamation (libel); and (2) false light invasion of privacy.

According to the complaint, Defendants allegedly manipulated production and editing of The Amazing Race Season 37 to create a false portrayal of Plaintiff Jonathan Towns as an abusive spouse, despite possessing footage showing his true character and the neurological distress he was experiencing. Plaintiffs claim Defendants ignored observable signs of Jonathan Towns' undiagnosed autism-related distress, failed to provide any support, and intentionally applied disparate and biased editorial standards by omitting exculpatory footage while spotlighting his distress episodes. Defendants then allegedly amplified this manufactured narrative through national broadcast and coordinated media coverage, causing severe reputational, emotional, and professional harm to both Jonathan and Ana Towns.

On April 22, 2026, Plaintiffs filed the operative first amended complaint against Defendants Worldrace Productions, Inc., Paramount Skydance Corporation, and CBS Broadcasting Inc. The other Defendants were omitted from the pleading. Plaintiffs also added causes of action for: (3) misappropriation of right of publicity; (4) disability discrimination; (5) violation of the right of privacy; (6) intentional infliction of emotional distress; (7) negligence and negligent infliction of emotional distress; (8) fraud (intentional and concealment); (9) violation of Bus. & Prof. Code § 17200 et seq.

On June 1, 2026, Defendants filed the instant motion to compel arbitration. On July 24, 2026, Plaintiffs filed an opposition. On July 27, 2026, Plaintiffs filed a notice of errata concerning their opposition. On

July 30, 2026, Defendants filed a reply.

LEGAL STANDARD:

Under California law, the trial court has authority to compel arbitration pursuant to CCP §1281.2 where a written agreement for such arbitration exists and one of the parties refuses to arbitrate. Specifically, the statute provides that, “[o]n petition of a party to an arbitration agreement alleging the existence of a written agreement to arbitrate a controversy and that a party thereto refuses to arbitrate such controversy, the court shall order the petitioner and the respondent to arbitrate the controversy if it determines that an agreement to arbitrate the controversy exists.” The statute further sets forth four grounds upon which the trial court may refuse to compel arbitration: (a) the right to compel arbitration was waived, (b) rescission of the agreement, (c) there is a pending action or special proceeding with a third party, arising out of the same transaction; and (d) petitioner is a state or federally chartered depository institution.

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“[T]he petitioner bears the burden of proving the existence of a valid arbitration agreement by the preponderance of the evidence.” (Giuliano v. Inland Empire Personnel, Inc. (2007) 149 Cal.App.4th 1276, 1284 (Guiliano).) “In determining whether an arbitration agreement applies to a specific dispute, the court may examine only the agreement itself and the complaint filed by the party refusing arbitration [citation]. The court should attempt to give effect to the parties’ intentions, in light of the usual and ordinary meaning of the contractual language and the circumstances under which the agreement was made.” (Weeks v. Crow (1980) 113 Cal.App.3d 350, 353.) “To determine whether a contractual arbitration clause requires arbitration of a particular controversy, the controversy is first identified and the issue is whether that controversy is within the scope of the contractual arbitration clause.” (Titolo v. Cano (2007) 157 Cal.App.4th 310, 316.) “Doubts as to whether an arbitration clause applies to a particular dispute are to be resolved in favor of sending the parties to arbitration. The court should order them to arbitrate unless it is clear that the arbitration clause cannot be interpreted to cover the dispute.” (California Correctional Peace Officers Ass’n v. State (2006) 142 Cal.App.4th 198, 205.)

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“[A] party opposing the petition bears the burden of proving by a preponderance of the evidence any fact necessary to its defense. [Citation.] In these summary proceedings, the trial court sits as a trier of fact, weighing all the affidavits, declarations, and other documentary evidence, as well as oral testimony received at the court's discretion, to reach a final determination.” (Giuliano, supra, at p. 1284.)

ANALYSIS:

Defendants contend there is a valid agreement to arbitrate Plaintiffs' action, which includes a valid delegation clause, and even if this court determined enforceability it would lead to the same result of finding an enforceable contract. Defendants add that the agreements are not unconscionable and that it covers all Defendants as signatories and their parent entities.

Plaintiffs argue there is no agreement because the contracts are incomplete: they lacked the official rules and countersignatures by Defendants. Plaintiffs also argue that the agreement, including the delegation clause, are unconscionable due to surprise (procedural unconscionability) as well as lack of mutuality (injunctive relief available in court), splitting of fees despite their indigency, limited discovery, and no punitive damages available.

Defendants reply that there is a contract because the material terms of the contract are there (i.e., the official rules of the contest are not material to the arbitration agreement). They further reply that the delegation clause is clear and unmistakable, Plaintiffs' attacks of the arbitration system itself do not render the agreement (or the delegation clause) unconscionable, and there is no public policy reason against enforcement.

Existence of
Arbitration Agreement

In determining the enforceability of an arbitration agreement, the court considers “two ‘gateway issues’ of arbitrability: (1)

whether there was an agreement to arbitrate between the parties, and (2)

whether the agreement covered the dispute at issue.” (Omar v. Ralphs Grocery Co. (2004) 118 Cal.App.4th 955, 961 (Omar).) ¶¶

¶

Agreement

Between Parties: ¶

¶

The moving party can meet its initial burden of proving the existence of an arbitration agreement by attaching a copy of the Agreement to this motion bearing the signature of the opposing party. (See Bannister v. Marinidence Opco, LLC (2021) 64 Cal.App.5th 541, 541-543 [“The party seeking arbitration can meet its initial burden by attaching to the petition a copy of the arbitration agreement purporting to bear the respondent’s signature.”].) Alternatively, the moving party can meet its initial burden by setting forth the agreement’s provisions in the motion. (See Cal. Rules of Court, rule 3.1330; see also Condee v. Longwood Management Corp. (2001) 88 Cal.App.4th 215, 219.) ¶

Here, Defendants met their initial burden to show an agreement to arbitrate exists. Notably, they attached copies of the various agreements including the arbitration clause and initialed by Plaintiffs. (Declaration of Nick Corporon (Corporon Decl.) ¶¶ 4, 5, Exhibits C [Semi-Finalist Agreement], D [same], E [Interview Agreement and General Release], F.) The arbitration clause is in paragraph 38 of the Semi-Finalist Agreement, paragraph 51 of the Interview Agreement and General Release, and a standalone paragraph on page 5 of the confidentiality agreement. The clause is verbatim across all agreements. The agreements were also signed by Plaintiffs via DocuSign. (Ibid.) In fact, there is no dispute as to Plaintiffs’ signature.

Therefore, an agreement to arbitrate exists.

2.

Delegation

The courts determine issues of enforceability absent evidence of a “clear and unmistakable” agreement by parties that an

arbitrator, not the court, decides questions of enforceability. (See *Peleg v. Neiman Marcus Group, Inc.* (2012) 204 Cal.App.4th 1425, 1442; see also *Howsam v. Dean Witter Reynolds, Inc.* (2002) 537 U.S. 79, 84 [“a gateway dispute about whether the parties are bound by a given arbitration clause raises a ‘question of arbitrability’ for a court to decide.”].)

Here, there is a clear and unmistakable agreement by the parties for an arbitrator to decide questions of enforceability. The delegation clause at issue states:

The parties agree that a Dispute will include the determination of the scope or applicability of this agreement to arbitrate and the arbitrability of the Dispute, including, but not limited, to any claim of waiver.

(Corporan Decl., Exhibit C and D, paragraph 38 and Exhibit E and F, paragraph 51.)

Therefore, the parties agreed that a dispute includes applicability of the agreement. It is thus for the arbitrator to resolve.

After the court establishes a valid delegation clause, the court evaluates unconscionability challenges directed to it. (*Tiri v. Lucky Chances, Inc.* (2014) 226 Cal.App.4th 231, 240-241; *Nickson v. Shemran, Inc.* (2023) 90 Cal.App.5th 121, 132-133 [no direct challenge to the delegation clause].)

Here, Plaintiffs specifically challenge the delegation clause as unconscionable due to lack of differentiation from the rest of the arbitration clause as well as providing for equal fee sharing. (Opp. 13:9-15:2.) The court therefore addresses whether it is unconscionable. It is not. Notably, there is no procedural unconscionability. First, this is not a contract of adhesion. Instead, it is a contract for Plaintiffs to participate, voluntarily, in a reality tv show/contest. Put differently, Plaintiffs were not required to accept the agreement as a term of employment or to obtain necessary services. Second, they had days to review the agreements before executing them via DocuSign. Thus, there is no evidence of limited time to review. Without procedural unconscionability, there is no need to address substantive unconscionability since both must be present to find unconscionability.

Accordingly, the court GRANTS Defendants' motion to compel arbitration.

CONCLUSION:

For
the foregoing reasons, the Court decides the pending motion as follows:

1. Motion
to compel arbitration is GRANTED.

Moving party is to give notice.

IT IS SO ORDERED.

Dated: August 6, 2026 _____ Upinder
S. Kalra

Judge
of the Superior Court